THE HONORABLE ROBERT J. BRYAN

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON
AT TACOMA

AILA CURTIS, ET AL,

Plaintiffs,

v.

PEACEHEALTH, LIZ DUNNE, DOUG KOEKKOEK, TODD SALNAS, PATRICK ALLEN AND GOV. KATE BROWN

Defendants

Case No.: 3:23-cv-05741-RJB

**PLAINTIFFS' RESPONSE TO SHOW CAUSE ORDER ON SUPPLEMENTAL JURISDICTION OVER STATE LAW CLAIMS**

In response to this Court's Order (Doc 41, p. 21) directing the parties to show cause why the Court should not decline to exercise supplemental jurisdiction and should not dismiss the remaining state law claims without prejudice, Plaintiffs assert that if this Court chooses to dismiss all of Plaintiff's federal and Constitutional claims, then Plaintiffs do not wish this Court to exercise supplemental jurisdiction over Plaintiffs' state law claims, and that Plaintiffs' state law claims should be dismissed, without prejudice, subject to Federal Rule of Civil Procedure 1367(d), which provides that the statute of limitation for any such claims is tolled during the pendency of this litigation, and for a period of 30 days after the claims are dismissed, with additional tolling while the case is before the 9th Circuit Court of Appeals and the United States Supreme Court, and unless State law provides for a longer tolling period.

DATED THIS __ DAY OF FEBRUARY, 2024.

RESPECTFULLY SUBMITTED,

**SCHEXNAYDRE LAW FIRM**

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**CERTIFICATE OF SERVICE**

I hereby certify that on this 1ST day of February, 2024, I presented the foregoing pleading to the Clerk of Court for filing and uploading to the CM/ECF system, which will send notification of such filing to all counsel of record.

*/s/ David J. Schexnaydre*
DAVID J. SCHEXNAYDRE